

partition and each parties' interests in the property.

The Court's interpretation is further supported by the assumptions within the PRPA. The PRPA assumes that the right to a partition and the parties' interests in the property have already been made. For example, Code of Civil Procedure section 874.317 allows a cotenant to buy out the other cotenants using the fair market value and cotenant's fractional ownership of the entire parcel. This section then assumes that the Court has already made a finding as to each parties' interest in the property. Without such a finding, a party would not know what they would have to pay to buy the other cotenants' interest in the property.

Further, case law is clear that the court needs to make these determinations before ordering a sale of the property. "[A]n interlocutory judgment in a partition action is to include two elements: a determination of the parties' interests in the property and an order granting the partition. (§ 872.720, subd. (a).) ... [T]he manner of partition—i.e., a physical division or sale of the property—is to be decided when or after the parties' ownership interests are determined, but not before. (*Ibid.*)" (*Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 143.) Nothing in the PRPA indicates that it was written to overrule cases like *Summers* or change the findings required before the court decides how to partition the property.

The Court finds that first the Court must determine the parties' right to a partition and the parties' interests in the property. Once those determinations have been made then the Court can proceed through the PRPA process to partition the property, assuming that the Court finds that Plaintiff has a right to petition the property.

9. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
HEARING ON SUMMARY MOTION ON FIRST, SECOND, THIRD AND FOURTH CLAIMS
FILED BY: SEENO, ALBERT D., JR.
TENTATIVE RULING:

Before the Court is Defendants Albert D. Seeno, Jr., Willow View Association, and Eden Valley Ranch LLC's Motion for Summary Judgment on First, Second, Third, and Fourth Claims.

As noted by Defendants, they have resolved their disputes with Plaintiff Albert D. Seeno III, and as such his "claims are not implicated in this Motion." The Motion instead only addresses Plaintiff David Seeno's claims. As the parties have the same surname, the Court will refer to them by their first names for clarity. The Court means no disrespect in doing so.

For the following reasons, the Motion for Summary Judgment is **DENIED**.

General Factual and Procedural Background

Through several trusts and an LLC, the parties have an ownership interest in property known as Eden Valley Ranch ("Ranch"). At all relevant times Defendant Albert D. Seeno Jr. ("ADSJ") has maintained control over the Ranch. For decades, David enjoyed unrestrained access to the Ranch, including being able to stay there for long periods of time. (David Seeno Decl. ¶ 2.) Over time, he accumulated

numerous personal possessions which he stored at the Ranch. (*Ibid.*) During that time, he believed that his personal property would remain there indefinitely. (*Ibid.*) His property included guns, taxidermized animals, vehicles, and other personal effects. (*Ibid.*)

In June 2024, ADSJ suspended David and his immediate family's use and access to the Ranch. (ADSJ Decl. ¶ 6.) After he was informed that he could no longer access the Ranch, David requested that his personal property be returned to him. (David Seeno Decl. ¶ 4.) Part of these requests included seeking access to the Ranch to identify, inventory, and remove his personal property. (*Ibid.*) These requests were denied and David has been continually barred from returning to the Ranch since that time. (*Id.* at ¶¶ 5-6; ADSJ Decl. ¶ 6.)

It is undisputed that David Seeno owns personal property which is still located at the Ranch. ADSJ acknowledges that he has "repeatedly offered through [his] counsel to return any personal property through various methods." (ADSJ Decl. ¶ 8.) The parties, however, have been at odds as to how to determine what specific personal property of David's is at the Ranch and how best to have that personal property returned to him.

The early communications between the parties' counsel included indications from ADSJ's team that any of David's personal property would be segregated and made available for return. (D's Exhibits 3-7.) There was a general agreement that such personal property would be returned to David. (*Ibid.*) The sticking point, however, remained the disagreement on how best to identify the specific property at issue. While the dispute appears to include a large variety of items, the three main categories at issue are (1) taxidermized animals, (2) vehicles, and (3) guns.

After litigation commenced, the discussions continued regarding identifying the personal property at issue. In addition, Plaintiff propounded discovery directed toward identifying this information. Defendants filed the instant MSJ on November 17, 2025.

In early December 2025, Plaintiff explained that he was unable to provide a "comprehensive list of all David's property" at the Ranch without receiving the outstanding discovery responses. (Harvey Decl. ¶ 2, Ex. B.) For example, they indicated that they still needed David's hunting records, which they noted were in Defendants' possession. (*Id.* at Exs. B-C.)

Nevertheless, David prepared a partial list of the missing property from his memory and "based on the limited information he" had at that time. (*Ibid.*) Three lists were provided: (1) a list of 46 (presumably taxidermized) animals with a general description and 'acquisition date'; (2) a list of three vehicles with year, make, vehicle type, model, and vin number; and (3) a list of 7 guns with a general description of the make. (*Id.* Exs. B-C.)

Defendants disputed the claim that David Seeno needed the discovery responses to oppose the MSJ and noted that they would like David to provide the serial numbers for the weapons. (*Ibid.*) David responded indicating that he did not have a list of the serial numbers for the guns but noted that they were "all located in David's bedroom at the Ranch (or at least they were the last time he was permitted to visit)." (*Ibid.*) Defendants continued to demand the serial numbers for the guns, as well as the vehicle (even though they were previously provided).

The discussions continued between the parties regarding discovery as well as procedures for David obtaining his personal property from the Ranch. (*Ibid.*) Defendants continued to reiterate that David and his family were not personally allowed on the Ranch, so other arrangements would need to be

made for the transfer of the property. (*Ibid.*) For example, Defendants indicated that they would deliver David's vehicles to the gate of the Ranch where David could take possession. (*Ibid.*) They claimed, however, that due to the single road going to the Ranch that it would require 'several weeks of perfect weather' to allow a truck/trailer to safely navigate the route. (*Ibid.*)

To date, it does not appear that David has been provided with any of this personal property from the Ranch.

As a result of the above, Plaintiffs filed a Complaint on October 14, 2023, alleging four causes of action: (1) conversion; (2) civil remedy for stolen goods; (3) replevin – personal property; and (4) injunctive relief. Plaintiffs sought a temporary restraining order restraining enjoining Defendants from interfering with Plaintiffs' access to their personal property located at the Ranch. That request was denied. Plaintiffs then sought a preliminary injunction seeking an order restraining and enjoining Defendants from interfering with Plaintiffs' ownership rights in their personal property, removal or transfer or Plaintiffs' right to possession of same. That request was also denied by the Court.

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the granting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.'" (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.) Thus, a defendant moving for summary judgment "must make a prima facie showing, i.e., 'he must present evidence that would require a reasonable trier of fact *not* to find any underlying material fact more likely than not—otherwise, he would not be entitled to judgment *as a matter of law*, but would have to present *his* evidence to a trier of fact." (*Ibid.* quoting *Aguilar*, *supra*, 174 Cal.App.4th at 851.)

Summary judgment law in California "continues to require a defendant moving for summary judgment to present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar*, 25 Cal.4th at 855.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, **and cannot reasonably obtain**, needed evidence--as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (*Ibid.* emphasis added.)

Summary Judgment versus Summary Adjudication

Defendants' motion is styled as a "Motion for Summary **Judgment** on First, Second, Third, and Forth Claims." (emphasis added.) The notice of motion indicates that the Defendants "move for an order granting **summary judgment** on the claims identified below." (Notice at 2:2-5 emphasis added.) It continues by explaining that the "Motion is made under California Code of Civil Procedure §

437c(a)(1)....” (*Id.* at 2:5-7.) That section pertains to motions for summary judgment – and does not include summary adjudication. The Conclusion for the Motion ends by asking “that the Court grant summary **judgment** in their favor.” (Motion at 12:12 emphasis added.)

Section 437c(f) pertains to motions for summary adjudication which “may be made by itself of as an alternative to a motion for summary judgment....” (Code Civ. Proc. 437c (f)(2).) Here, as made clear above, Defendants only seek summary judgment. There is no reference or request for a motion for summary adjudication. “[A] court may not properly grant summary adjudication of issues when the notice of motion was only for summary judgment.” (*Jimenez v. Protective Life Ins. Co.* (1992) 8 Cal.App.4th 528, 532 citing *Gonzalez v. Superior Court* (1987) 189 Cal.App.3d 1542.)

“It is elemental that a notice of motion must state in writing the ‘grounds upon which it will be made.’” (*Gonzalez*, 189 Cal.App.3d at 1545 citations omitted.) “Only the grounds specified in the notice of motion may be considered by the trial court.” (*Ibid.*) “This rule has been held to be especially true in the case of motions for summary adjudication of issues.” (*Ibid.*)

As Defendants’ motion is limited to one for summary judgment, it can only be granted if Defendants show that “the action has no merit,” i.e. that every one of the causes of action is without merit. If a single cause of action is viable, the entire motion for summary judgment fails. (Code Civ. Proc. § 437c(c).); *All Towing Services LLC v. City of Orange* (2013) 220 Cal.App.4th 946, 954 [“Summary judgment is proper only if it disposes of the entire lawsuit.”])

Analysis

Conversion

“Conversion is generally described as the wrongful exercise of dominion over the personal property of another. [Citation.] The basic elements of the tort are (1) the plaintiff’s ownership or right to possession of personal property; (2) the defendant’s disposition of the property in a manner that is inconsistent with the plaintiff’s property rights; and (3) resulting damages. [Citation.]” (*Regent Alliance Ltd. v. Rabizadeh* (2014) 231 Cal.App.4th 1177, 1181 quoting *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

“Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant’s good faith, lack of knowledge, and motive are ordinarily immaterial.” (*Ibid.* quoting *Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066.)

Defendants argue that David Seeno cannot establish that Defendants ‘wrongfully interfered with David’s possession of any personal property’ as ADSJ “offered return of any such property upon basic conditions that David has yet to fulfill.” (MSJ at 8:4-7.) Elsewhere, they claim that ADSJ “has not interfered with David’s possession *without justification*.” (MSJ at 8:18 italics added.)

To begin with, it is undisputed that David has numerous items of personal property left at the Ranch. He had a bedroom at a guesthouse located at the Ranch ‘for decades,’ where he stored his personal property. At the time, there was no indication that he would not be able to continue storing property there, nor that he would not be able to retrieve it whenever he needed.

As noted above, conversion is a strict liability tort. Whether or not ADSJ had a ‘justification’ for

preventing David Seeno access to his personal property is irrelevant. If David can show that Defendants have prevented him from taking possession of his personal property – he has established the elements of his conversion claim. The Court notes proving damages is still an issue, but that element was not discussed by the Parties.

The main dispute appears to revolve around Defendants' claim that David has failed to properly identify any of his personal property that is at the Ranch. It is true that in the early communications between the parties (including prior to suit being filed), David did not provide any itemized list or relatively detailed description of the property he was seeking to be returned.

On December 4, 2025, however, David's counsel sent a communication to Defendant's counsel which specifically identified fifty-four items of his personal property that David had prepared from memory. The letter explained that David provided as much detail as he could given that he was barred from accessing the Ranch, including records stored there, to give more detail. The list included three vehicles identified by vehicle type, year, make, model, and vehicle identification number. It also generally described seven of David's guns, e.g. "Marlin 22 mag cal rifle." A follow-up email further clarified that the guns were "all located in David's bedroom at the Ranch...."

Despite this list of property, including noting that some of it was in David's bedroom at the Ranch, Defendants refused to return the Property. Instead, they unilaterally determined that the descriptions were not complete enough, and they demanded additional details. David's counsel advised that some of the details would be included in records in the possession of Defendants, e.g. hunting records kept at the Ranch. As David did not have access to those records, and was being prevented from accessing them, they were being sought through discovery in the litigation. To date, David has not received full and complete responses to the discovery and has filed motions to compel to obtain the information he seeks. Those motions are still pending.

The above indicates that there are numerous disputed issues of material fact which require the Court to deny Defendants motion. First, Defendants' position that they do not have sufficient information to identify what personal property to which David is laying claim is disputed. While it may be better that David provide serial numbers for the guns, it is unclear that the descriptions of the guns – in tandem with the indication that they are located in David's old bedroom – is insufficient to properly describe the guns. A jury could reasonably conclude that the descriptions were sufficient.

In addition, it is the Defendants burden to "present evidence that the plaintiff does not possess, **and cannot reasonably obtain**, needed evidence...." (*Aguilar*, 25 Cal.4th at 855.) This can be done, for example, via "admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (*Ibid.* emphasis added.) As noted above, discovery is still ongoing. It is well within reason that David will be able to obtain the serial numbers either through written discovery, a more thorough review of his own records, or possibly a site inspection by his counsel. Defendants have not presented any of Plaintiff's discovery responses indicating that David admits he cannot identify the items he is claiming are his personal property. It appears that Defendants have not propounded any discovery at this time.

More specifically, it is undisputed that David very specifically identified the three vehicles at issue with as much specificity as possible – including VIN#s. Defendants do not argue that such items were not properly identified. In fact, the vehicles were not addressed in the opening papers. It is only in reply that Defendants indicate, after conceding that David's "ownership was not uncertain," that "Mr. Seeno agreed to return David's vehicles when weather permits," citing David's declaration. The cited

portion of David's declaration states:

[ADSJ] agreed in principle that my vehicles could be returned, but only through a unilateral process entirely under his control, on an unspecified date and subject to conditions determined solely by him. To date, no vehicles have been returned. (David Seeno Decl. ¶ 14.)

This statement makes clear that the vehicles have not been returned. It also confirms that there is no date certain when the vehicles will be returned. While citing to the above, Defendants dispute that the return of the vehicles is "subject to conditions determined solely by [Mr. Seeno]." (Reply at 6: fn 3.) They then cite a letter between counsel wherein Defendants counsel unilaterally states: "The collection process for these 3 vehicles will be as follows: [outlining procedure]." (Opp. Ex. F.) It is explained that delivering the vehicles "will require several weeks of perfect weather to allow a truck/trailer to safely traverse the mountain." (*Ibid.*)

There is a dispute as to whether the process imposed by Defendants is necessary. The inability to safely transport the vehicles is not listed as an undisputed material fact. Nor is there any evidence supporting this claim, other than the email explaining the procedure. While Defendants' counsel provides a declaration explaining that the private access road to the Ranch is long and inhospitable, it does not explain or support a finding that 'several weeks of perfect weather' are required before it can be used for this purpose.

Assuming for arguments sake that the process is the only feasible one, there is no admissible evidence that the conditions of the road have not been favorable at any time since December 4, 2025, when the three vehicles were identified. Whether the safe transfer of the vehicles could/should have occurred prior to now – and has not occurred due to Defendants' lack of diligence – is an issue of fact for a jury to decide.

Based on the above, Defendants have failed to meet their initial burden to show that there is no triable issue as to any material fact regarding the conversion cause of action. At a minimum, there are disputed facts regarding Defendants' failure to timely return David Seeno's vehicles. If there is a single issue of material fact in dispute a motion for summary judgment must be denied. (Code Civ. Proc. § 437c(c).)

Other Causes of Action

As Defendants' motion is limited to one for summary judgment, it can only be granted if Defendants show that "the action has no merit," i.e. that every one of the causes of action is without merit. If a single cause of action is viable, the entire motion for summary judgment fails. (Code Civ. Proc. § 437c(c).); *All Towing Services LLC v. City of Orange* (2013) 220 Cal.App.4th 946, 954 ["Summary judgment is proper only if it disposes of the entire lawsuit."])

As Defendants have failed to meet their burden regarding the conversion cause of action, the Court need not analyze the other cause of action at issue. Because there is a single viable cause of action, the motion for summary judgment must be denied in its entirety.

Conclusion

Defendants' Motion for Summary Judgment is **DENIED**.

10. 9:00 AM CASE NUMBER: C24-02065

CASE NAME: MARIA ADRIANO VS. ANGELA GERALDI

*HEARING ON MOTION IN RE: SUBSTITUTE EDWIN F. RIVERA IN PLACE OF DECEASED PLAINTIFF,
ANA MATILDE VASCONCELOS VDA DE SANCHEZ

FILED BY: ADRIANO, MARIA LUZ

TENTATIVE RULING:

Plaintiff ANA MATILDE VASCONCELOS VDA. DE SANCHEZ ("Decedent") by and through her successor-in-interest, EDWIN F. RIVERA ("Successor-in-Interest") filed a Motion to Substitute the Successor-in-Interest in place of the Decedent plaintiff as a party herein on or about September 24, 2025 (the "Motion to Substitute"). The Motion to Substitute was set for hearing on February 9, 2026. The Motion to Substitute is unopposed.

Analysis

Code of Civil Procedure section 377.33 provides that "[t]he court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." See Code Civ. Proc. § 377.33.

Code of Civil Procedure section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, **the court shall allow a pending action** or proceeding that does not abate **to be continued** by the decedent's personal representative or, if none, **by the decedent's successor in interest.**" See Code Civ. Proc. § 377.31 (emphasis added).

This requires the decedent's successor in interest to file a declaration containing certain affirmations. See Code Civ. Proc. § 377.32. Among other things, those affirmations include that the decedent is the successor in interest and that "[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding." *Id.*

The supporting declaration filed by the Successor-in-Interest here complies with those requirements. See Declaration of Edwin F. Rivera filed as part of the Motion to Substitute, ¶¶2-7.

Disposition

The Court finds and rules as follows:

1. The Motion to Substitute is GRANTED.
2. Moving party to prepare the proposed form of order.

11. 9:00 AM CASE NUMBER: C24-02786

CASE NAME: KRISTOPHER BATEMAN VS. DOES 1 TO 50 INCLUSIVE

*HEARING ON MOTION IN RE: QUASH SUBPOENAS ISSUED ON 3/12/25

FILED BY: BATEMAN, KRISTOPHER

TENTATIVE RULING:

Plaintiff Kristopher Bateman ("Plaintiff") filed two motions to quash subpoenas [(1) a Motion to Quash